

B.B.,	:	
	:	
Plaintiff,	:	
	:	
v.	:	
	:	
S. BRADLEY MELL, KIMBERLY	:	
RUGGLES MELL, individually,	:	
and as guardian of W.M.,	:	
W.H. MELL ASSOCIATES, INC.,	:	
GULFSTREAM CM, L.L.C.,	:	
GULFSTREAM GM, L.L.C., AERO	:	
CARE SERVICES, L.L.C.,	:	
EMILY MELL, ELIZA MELL,	:	
STEVEN BRADLEY MELL 2012	:	
FAMILY TRUST, KIMBERLY MELL	:	TRANSCRIPT
2012 FAMILY TRUST, and	:	
MOUNTAINSIDE SECURITIES,	:	OF
LLC,	:	
	:	
Defendants.	:	MOTION

KIMBERLY RUGGLES MELL,	:	
STEVEN BRADLEY MELL 2012	:	
FAMILY TRUST, GULFSTREAM	:	
CM, L.L.C., GULFSTREAM GM,	:	
L.L.C., AERO CARE SERVICES,	:	
L.L.C., EMILY MELL, ELIZA	:	
MELL, KIMBERLY MELL 2012	:	
FAMILY TRUST,	:	
	:	
Third-party Plaintiffs,	:	
	:	
v.	:	
	:	
D.D. and E.E.,	:	
	:	
Third-party Defendants.	:	

Place: Essex County Superior Court
470 Dr. Martin Luther King,
Jr. Blvd.
Newark, NJ 07102

Date: May 15, 2026

BEFORE:

HONORABLE ROBERT H. GARDNER, J.S.C.

TRANSCRIPT ORDERED BY:

STEVEN BRADLEY MELL, PRO SE
PO BOX 835
FAR HILLS, NJ 7931

APPEARANCES:

MICHAEL J. PARAGANO, ESQ. (Nagel Rice, LLP)
Attorney for Plaintiff B.B.

STEVEN BRADLEY MELL, PRO SE
Defendant Appearing Pro Se

NATALIANA A. GUIDA, ESQ.
ROBERT T. EVERS, ESQ.
(Marshall Dennehey Warner Coleman & Goggin, PC)
Attorneys for Third-party Defendants D.D. and E.E.

RICHARD A. GREIFINGER, ESQ. (Law Offices of
Richard A. Greifinger)
Attorney for C.C., a witness

Transcriber: Patricia LaMonica, AD/T 326

Agency: Vox Transcription Services
PO Box 2243
Cinnaminson, NJ 08077
856.543.4266

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1 (Proceeding in session at 1:37:40 p.m.)
2 THE COURT: All right. Good afternoon. This
3 is B.B. v. Mell, et al., which is ESX-L-7200-19. It's
4 May 15th of 2026. This is Judge Robert H. Gardner,
5 Superior Court, Law Division, Essex County Civil
6 Division.
7 Counsel, enter appearances for the record,
8 please. Plaintiff?
9 MR. PARAGANO: Good afternoon, Your Honor.
10 Michael Paragano, Nagel Rice, on behalf of
11 the plaintiff, B.B.
12 THE COURT: Good afternoon.
13 MS. GUIDA: Good afternoon, Your Honor.
14 Nataliana Guida, with my partner, Bob Evers,
15 Marshall Dennehey, for Third-Party Defendants D.D. and
16 E.E.
17 THE COURT: All right. Richard, do you want
18 to enter appearance, or --
19 MR. GREIFINGER: I represent an interested
20 non-party. I would ask, because I can't hear so well,
21 if I could --
22 THE COURT: Sure.
23 MR. GREIFINGER: Thank you.
24 THE COURT: Mr. Mell?
25 MR. MELL: Yes.

1 S T E V E N B R A D L E Y M E L L, DEFENDANT,
2 SWORN.
3 THE COURT: You're Bradley Mell?
4 MR. MELL: I am. Yes, sir.
5 THE COURT: Thank you, sir. Have a seat.
6 Okay. Mr. Paragano, just to keep things
7 straight here, as you know, this has been a paper chase
8 and an avalanche of very -- I mean, this entire far
9 side -- the record will reflect the entire left side of
10 the bench here is covered in various briefs and
11 submissions and certifications, and I appreciate
12 counsels' efforts in that regard.
13 I mean, now since we adjourned this,
14 obviously, from last month, I've now prepped this whole
15 thing twice. What's left in this case? I know,
16 obviously, there's issues between Mr. Mell and the
17 third-party defendants. There's cross-motions there.
18 I know a number of people have settled out, including,
19 I believe, the -- Ms. Mell's --
20 MR. PARAGANO: Yeah, Judge --
21 THE COURT: -- trusts.
22 MR. PARAGANO: -- we've settled with
23 everyone, from the plaintiff's perspective, except for
24 Mr. Mell.
25 THE COURT: Okay.

1 MR. PARAGANO: That's the only remaining
2 defendant left.
3 THE COURT: Okay. So Gulfstream's out.
4 MR. PARAGANO: Out.
5 THE COURT: I saw that. Mountain --
6 MR. PARAGANO: The trusts are out.
7 THE COURT: Mountainside's out?
8 MR. PARAGANO: Mountainside is out --
9 THE COURT: Okay.
10 MR. PARAGANO: -- and Ms. Ruggles Mell is
11 also out. So literally every defendant is out. The
12 summary judgements that pertain to us regarding any
13 defendants are completely --
14 THE COURT: Withdrawn.
15 MR. PARAGANO: -- withdrawn.
16 THE COURT: I --
17 MR. PARAGANO: So the real -- the only
18 motions on today are between third-party defendants and
19 Mr. Mell.
20 THE COURT: Okay. All right.
21 MR. PARAGANO: That's it.
22 THE COURT: And there's cross-motions for
23 summary judgement in that regard?
24 MR. PARAGANO: Correct.
25 THE COURT: Thank you. As I said, I was

1 prepping all this other stuff, and I couldn't quite
2 figure it out, because I was looking at certain things
3 on eCourts, certain stipulations were coming in, certain
4 letters were coming in, and I wanted to make sure we
5 were all -- we were all really on the same page.
6 All right. So now bear with me two seconds
7 here as I -- that's withdrawn. That's withdrawn. All
8 right. I'll get you there yet, folks. Bear with me.
9 All right.
10 (Pause)
11 THE COURT: All right. There -- as I said,
12 the only remaining aspects would then be then the
13 cross-motions between Defendant/Third-Party Plaintiff
14 Mell and the third-party defendants D.D. and E.E.
15 Just so the record reflects, the briefing was
16 substantial in this matter. The Court has had an
17 opportunity to review all of it. That being the case,
18 whosoever the preference on -- wishes to go first is
19 fine by me.
20 MR. MELL: I'm happy to go first.
21 THE COURT: Mr. Mell, you want to go first?
22 That's fine. Sure.
23 MR. MELL: Is it okay if I sit? I just have
24 sciatica, so standing --
25 THE COURT: Sure.

1 MR. MELL: Thank you.

2 THE COURT: No problem. And to explain, I've
3 read all the papers. As you know, I've been handling
4 this case since 2019.

5 MR. MELL: Absolutely.

6 THE COURT: The Court is intimately familiar
7 with the fact pattern.

8 MR. MELL: So I just -- I wanted to highlight
9 a couple of things.

10 THE COURT: Sure.

11 MR. MELL: But --

12 THE COURT: Absolutely.

13 MR. MELL: Thank you, Your Honor.

14 So before the Court today are two summary
15 judgement motions. As Your Honor is aware, you have
16 granted five separate motions to implead the parents
17 D.D. and E.E. back in late 2023. My liability is not
18 before the Court, the parents' is. I plead guilty. I
19 served my sentence.

20 And, Your Honor, I also want to briefly
21 advise the Court of a recent development in the related
22 New Jersey criminal matter arising from the same
23 subject matter as they used in the case. The Honorable
24 Christopher Gardner -- or Garrenger, of Hunterdon
25 County, has granted an evidentiary hearing to explore

1 whether my guilty plea, the plea agreement, and the
2 related proceedings were ineffective and
3 unconstitutional due to ineffective assistance of
4 counsel.

5 THE COURT: You got to talk a little bit
6 louder, sir.

7 MR. MELL: Okay.

8 THE COURT: Let me explain. As I tell all
9 the witnesses and anyone who testifies, it's a
10 beautiful room with terrible acoustics.

11 MR. MELL: Okay.

12 THE COURT: You got to keep your voice up.

13 MR. MELL: Yep.

14 THE COURT: It may be a little bit unnatural
15 in the sense you may feel like you're shouting. You're
16 not. We just got to make sure that Madam Clerk and the
17 microphone --

18 MR. MELL: Got it.

19 THE COURT: -- picks you up so that it
20 records, okay?

21 MR. MELL: Okay. And I have a copy of that
22 court order for the Court, if you want to see it.

23 What brings us here today is a separate legal
24 action, whether the parents who, by their own
25 admission, learned in February 2016 of what they

1 themselves characterize as an inappropriate situation
2 between their daughter and myself and whom, for the
3 next 16 months, accepted private flights, club
4 memberships, and significant sums of money, whether
5 those parents bear any legal responsibility for what
6 happened to their younger daughter. This is the only
7 question before the Court today.

8 Statute 2A:61B of the CSAA asks whether the
9 parents knowingly permitted and acquiesced. The
10 relevant facts remain undisputed. I intend to show
11 how.

12 Statute -- Your Honor, the New Jersey Sexual
13 -- Child Sexual Abuse Act states that a parent who
14 knowingly permits and acquiesces the sexual abuse of
15 the child is liable. If they committed -- even if they
16 didn't commit abuse themselves, the two words that
17 entirely hold weight in this argument are knowingly and
18 acquiesced.

19 I'd like to walk the Court through the
20 undisputed records. On President's Day 2016, both
21 parents became aware of what they themselves described
22 as an inappropriate relationship involving their
23 daughter, C.C., and myself. This is not in dispute.
24 It is stated in the parents' summary judgement motion
25 dated January 15, page 3 line item 5.

1 They did not read about it. They did not
2 hear a rumor. The mother sat across from me in a
3 private room at the Essex Hunt Club and had direct --
4 and heard directly from me about the relationship.
5 This is the starting point. Not December 4th when the
6 school was called, not when police got involved in late
7 December 2017 but, in fact, February 2016. That's when
8 the clock started.

9 From that moment forward, every decision the
10 parents made was with knowledge in hand. They
11 acknowledged that the situation involving their teenage
12 daughter had occurred, and they themselves
13 characterized it as inappropriate. That is not
14 suspicious. That is not assumption. That is direct
15 uncontested knowledge.

16 The Court needs to take no other words. It
17 is the defendant's own -- it's in defendant's own
18 filing, paragraph 5 of the defendant's statement of
19 material facts.

20 Acquiesces. Your Honor, what did the parents
21 do with the knowledge? They did not contact police,
22 they did not serve any -- they did not sever any
23 contact with me, and they did not take any protective
24 actions whatsoever.

25 Instead, over the next 16 months, they

1 accepted the private plane for an entire -- for their
2 entire family to Maine for college move-in, again to
3 Maine for parents' weekend, flown out of New York City
4 via helicopter piloted by myself after a shopping
5 spree, also paid by myself. This is all in the record,
6 and it's all undisputed.

7 They accepted \$25,000 into the mother's Chase
8 account, an account opened just four weeks before the
9 deposit arrived. They spent every penny of the 25,000,
10 and then fabricated a false record by immediately
11 depositing 25,000 on December 1st, right after Attorney
12 Patrick Whalen filed a motion to compel these --
13 Chase's statements. See Mell summary judgement motion,
14 Exhibit 2.

15 October 21, 2019, the Chase account became
16 insolvent due to the Lowest Intermediate Balance Rule,
17 line 390.

18 On December 1, 2022, D.D. transferred 25,000
19 into this account, line number 802.

20 And on May 1, 2023, D.D. transferred out
21 25,000 to their attorney, Richard Greifinger, line 862.

22 They accepted brokerage accounts funded with
23 \$25,000 each, they accepted concert tickets, they
24 accepted real estate commissions, they accepted
25 sponsorships to an exclusive club of which I was on the

1 board and, critically, with full knowledge of what they
2 themselves characterize as an inappropriate situation
3 with their daughter, they permitted me to take their
4 daughter, B.B., alone to the airport to fund and
5 facilitate private flying lessons. Her parents knew it
6 and approved. This is on the record.

7 Your Honor, the statute does not require
8 these parents wanting anything improper to occur. It
9 requires that they knowingly permitted and acquiesced
10 in the conditions that allowed it. The undisputed
11 record shows exactly that.

12 If there is any remaining doubt about how the
13 mother understood the nature of the relationship, the
14 Court need look no further than her own words.

15 On November 19, 2017, weeks before any police
16 involvement, she texted her daughter and wrote,

17 "I also think he's ready to be done
18 with us. Not get rid of B.B., but
19 done with us, a family unit."

20 Your Honor, the text did not come from a
21 mother who was deceived. It came from a mother who
22 understood exactly what was at stake, and it was not
23 her daughter's safety.

24 Parental immunity. Your Honor, I want to
25 address parental immunity directly. First, the

1 legislature already resolved this question when the
2 legislature drafted the Sexual -- Child Sexual Abuse
3 Act and included the word parent explicitly. It made a
4 deliberate -- made a deliberate choice to create
5 parental liability in exactly this circumstance.
6 Applying immunity here would nullify any legislative
7 choice entirely.

8 This Court does not read the statute to
9 produce certain results, as the statute holds the
10 parents liable and cannot simultaneously immunize them
11 from that liability.

12 Second, even under the Murray test, immunity
13 does not apply. The test requires that the conduct be
14 customary parental supervision pertaining to someone --
15 permitting someone they had direct concerns about to
16 take their younger daughter alone to the airport is not
17 customary supervision. Accepting \$25,000 while
18 maintaining and deepening the social relationship with
19 myself is not customary supervision.

20 This is not a failure to watch closely.
21 This is an affirmative choice repeated over 16 months
22 to maintain the benefits from the relationship they had
23 every reason to scrutinize.

24 Third, even if the Court found the conduct
25 that qualifies as supervision, it meets the willful and

1 wanton standard under Foldi. The parents, who has
2 direct knowledge, who attends a private meeting and
3 then permits 16 months of deepening access while
4 attempting significant financial benefits is not
5 negligence. This is willful disregard of a known risk
6 to their child -- children.

7 Your Honor, the relevant facts are not in
8 dispute. The statute is clear. These parents had
9 direct knowledge of the situation they characterized as
10 inappropriate. For 16 months, they acquiesced and they
11 benefitted.

12 Summary judgement should be entered into my
13 favor on the CSAA claim. Parental immunity does not
14 exist. The contribution and indemnification claim
15 should proceed to trial.

16 Thank you, Your Honor. I'm happy to answer
17 any questions.

18 THE COURT: All right. Thank you, Mr. Mell.
19 Counsel for the --

20 MS. GUIDA: Thank you.

21 THE COURT: -- third-party defendants, when
22 you're ready.

23 MS. GUIDA: Thank you, Your Honor.

24 I agree with Mr. Mell, the statue is clear,
25 and that's where we part in any agreement. The CSAA

1 defines sexual abuse as an act of sexual contact or
2 sexual penetration between a child under the age of 18
3 years and an adult. A parent, foster parent, guardian,
4 or other person standing in loco parentis within the
5 household who knowingly permits or acquiesces in sexual
6 abuse by any other person also commits sexual abuse.
7 That use of an adverb, knowingly permits or acquiesces
8 in the sexual abuse, is clear.

9 What happened in February 2016 had absolutely
10 nothing to do with the plaintiff in this case. It
11 dealt with the relationship with her older sister --
12 the inappropriate relationship that Mell had with her
13 older sister. And we've yet to see, despite I think it
14 was over 2100 days of discovery in this case, any shred
15 of evidence that supports the contention that the
16 parents knew of Mr. Mells abuse of their middle
17 daughter, plaintiff in this case.

18 It cannot be disputed that there's no actual
19 knowledge of Mr. Mell's abuse of plaintiff here. Not a
20 single thing, despite giving Mr. Mell every single
21 benefit of the doubt, has been produced.

22 What we have here, effectively, is a
23 different situation than the time when the third-party
24 -- when the motions for summary judgement dismissing
25 the third-party complaints against my client were

1 filed. All other third-party plaintiffs have settled
2 out of the case, and their third-party complaints have
3 been withdrawn.

4 What's before the Court today is what's left
5 between Mr. Mell and the parents, who asked the Court
6 to find that he is entitled to monetary benefit because
7 his victim's parents failed to stop him from committing
8 the abuse. That is why we are here today, and none of
9 us would be in this room today if it were not for
10 Mr. Mell.

11 The purpose of the CSAA is to provide victims
12 of child sex abuse -- the legislative intent -- the
13 legislative purpose, is to provide victims of sexual
14 abuse with the opportunity to address the difficulties
15 that they are faced with bringing claims against their
16 abusers. There were certain time limitations
17 associated, the statute of limitations being two years.
18 In the case of child sexual abuse, obviously, it
19 presents various problems with that. And the purpose
20 has to do with compensating the victims, not the
21 abuser.

22 Concerning parental immunity, I can go
23 through -- and I'm not going to belabor the points in
24 the papers -- I can go through it if Your Honor wishes.

25 THE COURT: I've read it all. Counsel, you

1 can make whatever record --

2 MS. GUIDA: I don't feel I need to.

3 THE COURT: -- you want to make, counsel.

4 MS. GUIDA: And I, quite frankly, feel that I
5 don't need to, because what I just heard is just a
6 recitation of Mr. Mell's third-party complaint against
7 my clients. And on the papers, in all of the evidence
8 before Your Honor, there is nothing substantiating any
9 CSAA claims against my clients, and there is nothing
10 which would support stripping them of their right to
11 parental immunity in this case.

12 Because if you look at Foldi -- and Foldi is
13 where we first hear in the case law of the beginning of
14 the aggregation of parental immunity and, as years have
15 gone on, the courts have narrowed that, and narrowed
16 that, and narrowed that down. And in Foldi, the Court
17 placed great emphasis on the --

18 THE COURT: Parental authority and the
19 customary child care. The Court's familiar with Foldi.

20 MS. GUIDA: Beyond that, Your Honor, the
21 importance and protection of the household itself,
22 recognizing that not one child is the same, not one
23 parenting philosophy is the same, and one's
24 experiences, cultural -- life happens. Whatever
25 choices they make, the Court does not want to disturb

1 the parental unit and the decisions made in child
2 rearing.

3 So what I haven't heard from Mr. Mell is
4 anything about proximate cause.

5 THE COURT: Well, counsel, let me stop you.

6 MS. GUIDA: Um-hum.

7 THE COURT: Mr. Mell had some issues with the
8 -- and the third-party plaintiff had issues with regard
9 to C.C., who is the older sister.

10 MS. GUIDA: Correct.

11 THE COURT: And, in fact, the parents knew
12 about that. In fact, I think it's pretty undisputed,
13 the fact that there was some ongoing conversations with
14 regard to -- in the facts with regard to the -- that
15 particular relationship that went on was ultimately
16 revealed and ultimately stopped, and the argument being
17 that obviously that the third-party defendants were
18 somehow on notice of Mr. Mell's proclivities, if you
19 will.

20 Now I understand that that's not necessarily
21 what the CSAA was originally enacted for, but we have
22 to live with the language of the act, whether the
23 legislature -- if there's -- as I have been an intern
24 of the legislature in Connecticut, legislation and --
25 sometimes ends in -- is enacted that has unforeseen

1 consequences -- unforeseen permutations and
2 consequences.

3 This is somewhat of an interesting approach
4 that Mr. Mell is taking in this particular case, but
5 it's not necessarily one that the law seems to not
6 allow for.

7 MS. GUIDA: Well, in my reading, Your Honor,
8 of the CSAA --

9 THE COURT: Well, counsel, here's the problem
10 here, is that, if you will -- I've read all the
11 papers --

12 MS. GUIDA: Um-hum.

13 THE COURT: -- multiple times. The issue
14 here is whether, in fact, the parents acquiesced with
15 regard to what ended up happening or didn't happen in
16 this particular case, and the issue whether, in fact,
17 that acquiescence rises to the level of a willful,
18 wanton act or failure to act that would abrogate
19 parental immunity. That's what the case is about.

20 The problem with that is as soon as we get
21 into what is reasonable and what is willful or wanton,
22 it's a jury trial.

23 MS. GUIDA: Well, Your Honor --

24 THE COURT: Yes, it is, respectfully.

25 MS. GUIDA: I --

1 THE COURT: There's so much --

2 MS. GUIDA: I just want to back up --

3 THE COURT: There is so much --

4 MS. GUIDA: Okay.

5 THE COURT: There is so much, if you will,
6 circumstantial evidence. Obviously, you know, with
7 regard to having sat in criminal, as I did for
8 six-and-a-half years, many a cases have been proven by
9 circumstantial evidence rather than direct evidence.
10 This is a case -- they both are acceptable as means of
11 proof.

12 In this particular case, there's a ton of
13 circumstantial evidence in this case on both sides. So
14 where are we going? I'll hear you.

15 MS. GUIDA: There is nothing in this -- in
16 the plain language of the statute that talks about
17 foreseeability. We don't get to willful -- we don't
18 get to parental immunity if there is CSAA, because we
19 have knowledge there.

20 We're -- they're two separate animals.
21 There's CSAA, and there's parental immunity. They're
22 two separate claims. One's statutory, the CSAA.

23 THE COURT: Um-hum.

24 MS. GUIDA: The other is negligence. And
25 parental immunity, obviously, is the bar to negligence.

1 But looking -- you have to look at them separately.

2 Looking at the CSAA separately, how can you
3 knowingly permit or acquiesce in that which you are not
4 aware is occurring? And if you want -- if you're
5 towing the line, getting into the negligence and
6 parental immunity area --

7 THE COURT: Um-hum.

8 MS. GUIDA: -- and Mr. Mell is going to make
9 the argument that, well, you should have known because
10 of what I was doing in 2016 with your older daughter,
11 you can't even judge -- you cannot judge past judgement
12 on the parents' actions when they have not acted
13 knowingly and consciously that a result may occur,
14 because their actions following learning of the
15 inappropriate relationship with their older daughter
16 were not premised -- were premised upon manipulation,
17 were premised upon deceit, were premised upon the very
18 things that Mr. Mell used to get access to their middle
19 daughter.

20 It is not a standard of perfection. It is
21 not a standard of even mere negligence. We're moving
22 into parental immunity now. It's willful and wanton.

23 And you don't even get to that -- you cannot
24 -- you can't even get there because they are not acting
25 knowingly. They do not -- they are not aware of the

1 state of facts that can allow them to even make a
2 willful or wanton decision because they are being
3 manipulated by the perpetrator himself.

4 The parents -- everybody in that family is a
5 victim in different respects, and the parents fell
6 victim to Mr. Mell's manipulation. They did. And
7 effectively, by allowing this to continue, you are --
8 the Court is rewarding the perpetrator for his success
9 in deceiving the parents.

10 Could they have done things differently? Did
11 they make some mistakes? That is exactly what Foldi
12 talks about.

13 THE COURT: Um-hum.

14 MS. GUIDA: In retrospect, that is exactly
15 what Foldi talks about. That is the purpose of
16 parental immunity, not to question that, because
17 parents don't have a crystal ball, because parents
18 don't have a handbook, because there is no handbook
19 that comes with learning your 16 -- your 17-year-old
20 daughter is an inappropriate -- in an inappropriate
21 relationship with her best friend's father. There's no
22 handbook.

23 My clients handled that the best way they
24 felt that they could. They took her to a therapist.
25 The therapist -- faced with the threat of driving her

1 right into his arms, the mother initiated supervision
2 in the form of tracking her daughter. But afraid of
3 losing her, she -- what do you do?

4 This was the decision -- this was the
5 circumstance. This was the manipulation. And you --
6 they cannot be judged at all, let alone willful or
7 wanton, when that -- actions that they took, the
8 claimed lack of supervision, which is not lack of
9 supervision -- there is supervision, Mr. Mell is
10 thwarting it. Mr. Mell is the one who is coordinating
11 hiding the phone at the friend's. There's a scheme
12 here.

13 And I'll take it -- and to loop it back
14 around to the CSAA, it comes back to that November 19,
15 2017 text message and everything that happens then and
16 there. There is one person in this room who has
17 firsthand knowledge of this case, who has not failed to
18 remind us in almost every single pleading. And at his
19 -- and at Mr. Mell's deposition, when he was asked when
20 it was that the parents first had actual knowledge of
21 his abuse of plaintiff in this case, he pointed to
22 October 2017.

23 And that is the standard under the CSAA.
24 Again, it's not foreseeability. It's not knowledge of
25 a risk. It's not there. If a legislature wanted that

1 to be the standard, it would put it in there, but it
2 didn't.

3 THE COURT: Um-hum.

4 MS. GUIDA: And it's not for a reason. And,
5 look, I don't want to waste time with the papers,
6 because it is laid out I think pretty clearly in my
7 opposition and in my reply brief.

8 But how could my client have known about
9 Mr. Mell's abuse of plaintiff in this case on November
10 19, 2017 or any time before that when you have Mr. Mell
11 himself texting her explaining, I'm sorry, I thought it
12 was okay that I was just talking to her, but I assure
13 you, unlike your older daughter, this was nothing but a
14 friendship, we were just talking.

15 There's no knowledge. There's no
16 acquiescence. There's certainly no permission. She is
17 putting up a wall. She's getting nervous now. She is
18 trying to supervise more and more.

19 There is no -- Your Honor, there is no
20 evidence supporting what the case -- what the statute
21 -- the plain language of the statute requires.

22 THE COURT: Okay.

23 MS. GUIDA: And the last thing I want to
24 address is the parental immunity cases and the line of
25 cases that have been published that do abrogate -- and

1 even those that don't -- didn't contemplate the
2 situation before this Court. They dealt with dog
3 bites. They dealt with gasoline.

4 THE COURT: Um-hum.

5 MS. GUIDA: They dealt with crossing a
6 street. They dealt with inanimate objects who aren't
7 capable of speaking, who aren't capable of lulling prey
8 into an illusion of safety, Your Honor, and that's what
9 we have here.

10 We've heard a lot -- and, again, all I've
11 heard from Mr. Mell today is simply a recitation of his
12 third-party complaint, but what I -- and I will rely on
13 my papers in terms of all of those finer factual
14 points.

15 But if you want to talk about the \$25,000, I
16 do think it -- and the deposits, I do think it
17 certainly is worth mentioning that it was Mr. Mell who
18 deposited the money. He is asking the Court to believe
19 that my client somehow knew about that, asked for it.

20 He just testified -- admitted that she never
21 asked for it. She never directly asked for it. She
22 mentioned that, according to him -- which my client
23 denies -- that they were tight on tuition.

24 THE COURT: Um-hum.

25 MS. GUIDA: They deny that. The two -- the

1 discovery that has been served in this case that is
2 before Your Honor unequivocally demonstrates that the
3 tuition was never paid by Mr. Mell. It was paid by the
4 parents.

5 The money that he deposited -- he went to the
6 bank. He filled out the deposit slip. He cashed the
7 check. She didn't know about it until way down the
8 road. She had no idea, and she never touched that
9 money in the critical time period that Mr. Mell has
10 defined, that prior counsel who is no longer in this
11 case has defined, that everybody has defined.

12 Because what happens after December 4, 2017,
13 has absolutely no bearing on whether or not -- on their
14 claims in this case, whether or not my clients turned
15 the other cheek and allowed the abuse to occur because
16 they were enjoying his benefits.

17 That is part of the manipulation, Judge.
18 That is part of it. He deposited that money on the day
19 he committed the crimes to which he plead guilty in
20 state court.

21 He knew exactly what he was doing. My
22 clients never touched it. That money is in escrow.
23 There's a total of 75 in escrow. He -- Mr. Mell has
24 conceded that my clients never touched the money that
25 was in -- that was in the investment accounts. Never

1 touched it.

2 Same scenario. They didn't ask for that
3 money. That money got put in there. He has abandoned
4 his claims in this case.

5 At his deposition, he testified, I guess -- I
6 guess maybe not, maybe I didn't -- maybe I didn't pay
7 their tuition, because he didn't, Your Honor. There's
8 a lot of red herrings and a lot of snippets that are
9 thrown in his papers in this case, and when you read
10 things in context as a whole, it all comes together.

11 There's no getting rid of us. There's no,
12 maybe he's about to be done with us. If you read the
13 entire string of text message, you can see exactly what
14 she is saying, what my client is intending there.
15 She's trying to get her to stay away from him. Her
16 daughter is asking maybe if I can just be friends with
17 him in the future, or maybe can I just talk to him.
18 She said I think he's ready to be done with us. No.

19 Everything needs to be read in context, and
20 that is what the parental immunity doctrine requires, a
21 case-by-case basis for the trial judge to determine,
22 Your Honor. There's no question of fact for the jury,
23 Judge. Thank you.

24 THE COURT: All right. Thank you, counsel.
25 Mr. Mell, you want to say anything in

1 response?

2 MR. MELL: Just a couple quick things. Yes,
3 I actually, I would say, have firsthand knowledge --

4 THE COURT: You got to talk a little bit
5 louder.

6 MR. MELL: I'm sorry. Yes, I actually have
7 firsthand knowledge. You know, the parents -- I spoke
8 to the mom almost every day. I mean, we had
9 conversations.

10 I mean, for over the 16 months, when they
11 said that the parents didn't know, you know, B.B. slept
12 over at my house in July. I agreed to that. And the
13 parents, you know, text to me saying, you know, oh, I
14 know -- to her, I know where you were last night and
15 I'll talk to Mr. Mell. You know, so they knew in July,
16 you know, that, I mean, there was a potential issue
17 because she was, you know, flying, she stayed over.
18 The parents knew it.

19 The parents, they were so enamored, I would
20 say is the word, of the money, the lifestyle of -- you
21 know, when I was on the board at the Essex Hunt Club
22 and I got them in, you know, there happened to be two
23 cocktail parties and, at that time, I was having a
24 relationship with their older daughter, and they knew
25 it.

1 You know, and it has to be -- you know, you
2 scratch your head with, well, when you're dealing with
3 a board member cocktail party and there are 100 people
4 there, if they had said, oh, by the way, we know
5 Mr. Mell is having a relationship with our daughter --
6 they would never do that in a million years. They
7 redirected. They made the children lie.

8 When [REDACTED]'s -- when B.B.'s phone was found
9 by a friend -- and I think it was Leah who I told her
10 -- and they found a picture of B.B. and myself, the
11 mother was trying to reach out to the parents to say,
12 hey, there's a problem here, and they never did.

13 And then finally, that family said, well, if
14 they're not doing anything about it, we're going to
15 give the picture to the school, and they did. And I
16 accept this. It's wrong on so many levels.

17 The \$25,000, you know, everyone calls it a
18 critical period but, you know, I've been in the
19 investment business forever, and anti-money laundering
20 and fraud is a big deal. When I went to Chase and
21 deposited the money, I was on the phone with the older
22 sister, and the mom on speakerphone, because Chase -- I
23 needed their permission to deposit, and I -- and she
24 gave me her DDA number. I didn't know what her account
25 number was. I can't look that up.

1 Yes, I signed the check. I deposited it. I
2 got a song and dance how the father lost money and, you
3 know, they couldn't pay tuition. And yes, I did offer,
4 and I deposited that money, but it was with their
5 knowledge.

6 And then when you look at, you know, my
7 filing, I did a complete analysis of that, you know,
8 and they -- it floats there, and you -- to say they
9 never touched it is kind of misnomer, because you can
10 deposit money, use it, and then put it back in and say,
11 oops, you know, hey, no harm, no foul. So --

12 THE COURT: I read your brief, sir.

13 MR. MELL: Okay. So -- and I don't blame
14 them, but there's just so much to this case that, you
15 know, the parents need to answer. And if they spent
16 three-and-a-half years going to the New Jersey Supreme
17 Court twice to stop questions, to stop all this, it's
18 because this is going to be a disaster. And, you know,
19 I owned my responsibility, and I will. Okay. That's a
20 fact. But no one else has in this case.

21 And for the -- you know, they knew about it,
22 Your Honor. I don't even know what to say.

23 THE COURT: All right. Thank you, Mr. Mell.

24 MR. PARAGANO: Judge, if I may just make an
25 application to the Court?

1 Mr. Mell just used the real name of my client
2 in open court. It's going to be on the record. If
3 there's any way we can move to strike that.

4 THE COURT: We'll move to have -- move to
5 strike the -- B.B.'s name that was used is granted.
6 All right. So ordered.

7 MR. PARAGANO: Thank you.

8 MR. MELL: Sorry about that.

9 THE COURT: That's all right.

10 MS. GUIDA: Your Honor, may I --

11 MR. EVERS: Just real quick.

12 MS. GUIDA: May I just very briefly?

13 THE COURT: You know there's --

14 MR. EVERS: One minute.

15 THE COURT: -- no such thing as re-redirect
16 in my courtroom, but I'll certainly hear you on
17 argument. Sure.

18 MR. EVERS: Thank you, Judge.

19 MS. GUIDA: Thank you, Judge.

20 THE COURT: Briefly. Briefly, yes.

21 MS. GUIDA: Very briefly, one or two
22 sentences?

23 THE COURT: Sure.

24 MS. GUIDA: Mr. Mell cannot just create
25 issues of fact in oral argument. This is the first

1 time that I'm hearing any of -- many of these things.

2 What's before Your Honor and what Your Honor
3 needs to consider is in the papers and what's supported
4 in the evidence before the Court. That's all. Thank
5 you.

6 THE COURT: All right. The matter comes
7 before the Court on cross-motions for summary
8 judgement.

9 The Court -- we all know there has to be
10 substantial issue of operative fact in order to deny a
11 motion for summary judgement, and reasonable inferences
12 have to occur against the movant, which in this
13 particular case is rather interesting since it's
14 cross-motions for summary judgement. Both motions are
15 denied.

16 The act -- 2A:61B-1(a)(1), the CSAA, the
17 wording is the parent who knowingly permits or
18 acquiesces in sexual abuse by any other person also
19 commits sexual abuse.

20 There's a substantial issue of operative fact
21 here as to whether the parents in fact acquiesced here.
22 And as I said, it may not be direct evidence, but there
23 certainly is circumstantial evidence to at least make
24 an argument of the reasonable inferences against the
25 movant that, in fact, they may have acquiesced in this

1 case, and that motion -- and, therefore, the motion is
2 denied.

3 Also, with regard to parental immunity,
4 there's four elements under the Murray test. Acts or
5 omissions by a parent that a factfinder could
6 reasonably find were the proximate cause of the
7 plaintiff's injury. Certainly, that's obvious in this
8 case.

9 Was conduct protected by parental immunity;
10 does it involve exercising parental authority of the
11 provision of customary child care. I don't think that
12 -- certainly, the argument here would be that what
13 happened here certainly does not fall within parental
14 authority -- or provision of customary child care.

15 C -- or three, does conduct constitute a lack
16 of parental supervision. I think that's kind of an
17 obvious answer.

18 And four, could a factfinder reasonably find
19 that the conduct was willful or wanton through
20 remaining conduct from the -- or from -- removing it
21 from parental immunity. As I said, whether in fact
22 this rises to the level of willful or wanton I think is
23 a jury question and, therefore, I think -- on both
24 sides, the motions are denied.

25 We'll have the matter -- which brings me to

1 my second aspect on my note to myself. I know counsel
2 -- I appreciate the fact that plaintiff's counsel is
3 here. The case was originally listed for next month, I
4 believe, on the 12th. I did get a letter from
5 Mr. Nagel --

6 MR. PARAGANO: It's --

7 THE COURT: -- with regards --

8 MR. PARAGANO: -- the 15th.

9 MR. MELL: The 15th.

10 THE COURT: Or the 15th, whatever that Monday
11 is.

12 MR. PARAGANO: Yeah.

13 THE COURT: I did get a letter from Mr. Nagel
14 indicating, for the plaintiff, that he had another case
15 in front of Judge Semper in federal court and he wanted
16 to move the date up.

17 Now yes, under the rule of -- under summary
18 judgement rules and the rules for scheduling trials,
19 after summary judgement, you have to allow at least 30
20 days unless the Court orders otherwise, and I'm not
21 necessarily inclined to do that unless everyone wants
22 to agree to that. If you want to agree to that --
23 everyone wants to agree to that -- I don't know what
24 you have as far as preparations with regard to
25 witnesses and so forth.

1 I think this trial -- I did trial work for 23
2 years as a lawyer, and so I guess I'm understanding of
3 the stresses and strains involved. So the issue
4 becomes one of moving it earlier. I will certainly
5 talk to Judge Semper about the -- about his issues on
6 that front, although I appreciate the fact that federal
7 court always thinks they have priority over everybody
8 else. But this is also a 2019 case, and I'm sure his
9 case does not date from 2019. But I'll deal with Judge
10 Semper if I have to --

11 MR. PARAGANO: Okay.

12 THE COURT: -- by phone. What's your
13 thoughts, Mr. Paragano?

14 MR. PARAGANO: Yeah. Judge, we thought you
15 denied our request, which we saw on eCourts. That's
16 why we sort of now prepped that we're going to be ready
17 for June, I guess, 15th it is.

18 THE COURT: Well --

19 MR. PARAGANO: So --

20 THE COURT: -- I denied only -- well, there
21 wasn't consensus amongst the parties. Okay.

22 MR. PARAGANO: Right.

23 THE COURT: It's one thing if everybody
24 agrees. Look, we're here. I'm happy to accommodate
25 everybody who wants to show up whoever they want to

1 show up, okay, as long as I don't have another trial
2 going.

3 MR. PARAGANO: Right.

4 THE COURT: But I also understand, you know,
5 time, money, and effort to get these things prepared
6 and get them ready to go to trial. I have some
7 understanding of the client's money and your time.

8 So it depends on how you want to do with it.
9 If everyone wants to agree to a date sooner than that.
10 The week before, I'm not here on the Monday because I
11 have to go to a wedding up in New Hampshire, and I am
12 coming back that day on the 8th.

13 But unless you want to agree to do something
14 on the 1st or the 9th, or -- the 1st is a Monday, the
15 9th is a Tuesday, because I'm gone on Friday the 5th,
16 and then Monday the 8th I will be in New Hampshire.

17 MR. EVERS: I'd do --

18 THE COURT: Mr. Evers, are you going to try
19 -- are you the trial counsel?

20 MR. EVERS: I'm trying the case. Yeah.

21 THE COURT: That's what I figured. So I
22 figure -- what's your thoughts?

23 MR. EVERS: I do not think I can do it
24 earlier.

25 THE COURT: Okay.

1 MR. EVERS: My --
2 THE COURT: Well, I'm not pushing it past
3 June 30th for obvious reasons --
4 MR. EVERS: No, I know. I'm just --
5 THE COURT: -- because we all have to -- we
6 all answer to somebody, and I got to explain a 2019
7 case to the powers that be.
8 MR. EVERS: There's a number of cases I have
9 where we're waiting for NJ PURE to drop their bomb, so
10 to speak.
11 THE COURT: Are they still in business, or
12 are they --
13 MR. EVERS: Yeah, but they're supposed to be
14 filing for bankruptcy --
15 MR. PARAGANO: Bankruptcy.
16 MR. EVERS: -- or whatever it is.
17 THE COURT: Is it your client? It's not
18 your --
19 MR. EVERS: Not my client, no, but they are
20 -- they represent --
21 THE COURT: They're codefendants.
22 MR. EVERS: In other cases I mean.
23 THE COURT: No, no, no, no, I understand.
24 MR. EVERS: Right.
25 THE COURT: That's what I'm asking you.

1 MR. EVERS: Oh, yeah.
2 THE COURT: But they're not your client?
3 MR. EVERS: Yeah, I'm not doing that work.
4 THE COURT: It's not your bill. Okay.
5 MR. EVERS: I ain't doing that.
6 THE COURT: At least you're getting paid.
7 Okay.
8 MR. EVERS: Yes. So I'm not -- I have a
9 number of those cases between now and June 15th, so --
10 in Morristown. Enough said.
11 THE COURT: Well, you can only -- well, you
12 can only do one at a time, Bob. So what are you, you
13 know --
14 MR. EVERS: Thank you. So those may clear
15 up, and they may not. I just -- so I can't commit
16 right now to earlier.
17 THE COURT: Well, okay. Fair enough. I
18 figured I'd ask an obvious --
19 MR. EVERS: Yeah.
20 THE COURT: Look, as I said, I'm happy to
21 accommodate everybody that -- as long as it's
22 reasonable and everyone can agree on a date.
23 MR. PARAGANO: June 15th works for us.
24 THE COURT: All right. Then for -- well, for
25 the moment, we'll leave it on for the 15th. Obviously,

1 if Judge Semper has an issues, you can have Judge
2 Semper call me and we'll --

3 MR. PARAGANO: Okay.

4 THE COURT: -- discuss it amongst the
5 judiciary. I have not done federal work in a while,
6 but I'm sure most of their cases date -- post-date
7 2019. So all right. We'll shoot for the 15th then,
8 and unless something changes, and if that's all, I'll
9 give everybody a note or give everybody a call, or
10 we'll do a conference call or something like that.

11 Obviously, if something changes on your end,
12 Mr. Evers --

13 MR. EVERS: Yeah. Absolutely.

14 THE COURT: -- on your end, Mr. Paragano, on
15 your end, Mr. Mell, let us know. As I said, we're
16 always here, we're happy to accommodate everyone
17 reasonably. Otherwise, we'll set it up for the 15th.
18 Fair enough?

19 MR. PARAGANO: Thank you, Your Honor.

20 MR. MELL: Thank you, Your Honor

21 THE COURT: No problem. I'll enter the
22 appropriate order.

23 Thank you very much, everyone. Everyone have
24 a great weekend.

25 MR. EVERS: Thanks, Judge.

1 MS. GUIDA: Thank you.

2 THE COURT: And now I got to move all this
3 stuff back in to get to recycle it all.

4 (Proceeding adjourned at 2:17:43 p.m.)

5
6 CERTIFICATION

7
8 I, EMILY YOUNG, the assigned transcriber, do hereby
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18 Emily E. Young
19 Transcriber in Training

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